

Plaintiff Kseniia Novikov's unopposed motion to continue the mandatory settlement conference and trial dates is granted. Appearances required by the parties, who shall meet and confer in advance regarding appropriate new dates for trial, pretrial conference and settlement conference.

Legal Standard

Continuances are granted only on an affirmative showing of good cause requiring a continuance.” *In re Marriage of Falcone & Fyke* (2008) 164 Cal.App.4th 814, 823. A trial court has broad discretion in considering a request for a trial continuance. *Pham v. Nguyen* (1997) 54 Cal.App.4th 11, 13-18. California Rules of Court, rule 3.1332 sets forth factors for the Court to consider in ruling on a motion to continue trial.

Although “disfavored, each request for a continuance must be considered on its own merits. The court may grant a continuance only on an affirmative showing of good cause requiring the continuance.” Cal. Rules Ct., Rule 3.1332(c). Circumstances that may indicate good cause includes “[a] party’s excused inability to obtain essential testimony, documents, or other material evidence despite diligent efforts.” Cal. Rules Ct., Rule 3.1332(c)(6).

In ruling on a motion or application for continuance, the court must consider all the facts and circumstances that are relevant to the determination. These may include: 1. The proximity of the trial date; 2. Whether there was any previous continuance, extension of time, or delay of trial due to any party; 3. The length of the continuance requested; 4. The availability of alternative means to address the problem that gave rise to the motion or application for a continuance; 5. The prejudice that parties or witnesses will suffer as a result of the continuance; 6. If the case is entitled to a preferential trial setting, the reasons for that status and whether the need for a continuance outweighs the need to avoid delay; 7. The court’s calendar and the impact of granting a continuance on other pending trials; 8. Whether trial counsel is engaged in another trial; 9. Whether all parties have stipulated to a continuance; 10. Whether the interests of justice are best served by a continuance, by the trial of the matter, or by imposing conditions on the continuance; and 11. Any other fact or circumstance relevant to the fair determination of the motion or application.

Cal. Rules of Court, rule 3.1332(d).

In determining whether to reopen discovery, the court must consider the necessity of and reasons for the additional discovery, the diligence or lack thereof by the party seeking to reopen discovery in attempting to complete discovery prior to the cutoff, whether permitting the discovery will prevent the case from going forward on the trial date or will otherwise prejudice any party, and any past continuances of the trial date. See Code Civ. Proc., § 2024.050, subd. (b).

Discussion

Plaintiff requests a trial continuance and related trial dates and discovery cutoffs from the currently scheduled trial date of May 5, 2026. She states a continuance is warranted to continue

with discovery including taking key witness depositions. Raven Decl., ¶ 21; Cal. Rules of Ct., Rule 3.1332(c)(6). Moreover, she notes, specifically: this is the first request to continue trial; she seeks a brief continuance to allow for the depositions to occur in April, as well as to allow for Plaintiff's counsel's unavailability due to a preferentially set trial in Placer County beginning April 13, 2026; no other means exist to accomplish Plaintiff's goal to fully and fairly to present her case; the interests of justice will be served by the requested relief because the continuance of trial and related deadlines will allow Plaintiff to complete essential discovery and allow her experts sufficient time to review testimony and formulate complete opinions; Defendants will not be prejudiced because a continuance will allow all parties to complete remaining discovery in an orderly manner; and granting the continuance will promote judicial efficiency. Raven Decl., ¶¶ 23-27; Cal. Rules of Ct., Rule 3.1332(d)(1)-(2), (4)-(5), (8), (10).

Based on the moving papers and declaration submitted in support thereof, the Court finds a good cause to grant the request. However, the Court requires parties to appear in that the moving papers do not contain any information as to the requested length of the continuance, or the parties' availability.⁴

6. CU0001901 Heather Miles v. Michael Smallwood

Plaintiff Heather Miles' unopposed motion to deem matters admitted and for imposition of sanctions is granted. Defendant Michael Smallwood is ordered to pay Plaintiff \$2,810.00 in sanctions within 30 days.

Request to Deem Matters Admitted

A party may move for an order deeming her Requests for Admission ("RFAs") admitted if the party to whom they are directed has failed to serve a timely response. Code Civ. Proc. § 2033.280(b). "The court shall make this order, unless it finds that the party to whom the requests for admission have been directed has served, before the hearing on the motion, a proposed response to the requests for admission that is in substantial compliance with Section 2033.220." Code Civ. Proc. § 2033.280(c). Responses are due within 30 days after service of the discovery. Code Civ. Proc. §2033.250(a). Response time is extended by manner of service. Code Civ. Proc. § 2016.050. Service by mail extends the deadline by 5 calendar days. Code Civ. Proc. § 1013(a).

At bar, Plaintiff served her RFAs on November 17, 2025 by mail, making December 22, 2025 the deadline for Defendant to serve a timely response. Batista Decl., ¶ 2. Plaintiff has not received any response from Defendant, nor has Defendant responded to any meet and confer attempts. Batista Decl., ¶¶ 2-3. Therefore, The matters specified in Plaintiff's RFAs are deemed admitted, unless defendant serves, before the hearing, a proposed response to the requests for admission, that is in substantial compliance with Code of Civil Procedure Section 2033.220.

⁴ The Court is cognizant of the concerns noted by Defendant Streit in its response with respect to the increased MICRA cap effective next year.